



POLICE DEPARTMENT

May 28, 2024

-----X
In the Matter of the Charges and Specifications :

- against - :

Police Officer Caner Sezer :

Tax Registry No. 951236 :

67 Precinct :

Case No.

2022-25079

-----X
At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Anne E. Stone
Assistant Deputy Commissioner Trials

APPEARANCES:

For the CCRB:

Kenneth Crouch, Esq.
Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

For the Respondent:

Michael Martinez, Esq.
Worth, London & Martinez, LLP
111 John Street, Suite 640
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To:

HONORABLE EDWARD A. CABAN
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

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CHARGES AND SPECIFICATIONS

1. Police Officer Caner Sezer, on or about March 9, 2020, at approximately 0030 hours, while assigned to 67 Precinct and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, wrongfully used force, in that he pointed his gun at § 87(2)(b) without police necessity.

P.G. 221-02, Page 2, Prohibitions 11, 12

USE OF FORCE

2. Police Officer Caner Sezer, on or about March 9, 2020, at approximately 0030, while assigned to 67 Precinct and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by stating, in sum and substance, "You fucking move, you're gonna get hurt, you understand?" without police necessity.

P.G. 203-10, Page 1, Paragraph 5
now encompassed by A.G. 304-06

PUBLIC CONTACT -
PROHIBITED CONDUCT

3. Police Officer Caner Sezer, on or about March 9, 2020, at approximately 0030, while assigned to 67 Precinct and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, was discourteous to § 87(2)(b) in that he stated, in sum and substance, "I don't give a shit." "Don't fucking move," without sufficient legal authority.

P.G. 203-09, Page 1, Paragraph 2
now encompassed by A.G. 304-06

PUBLIC CONTACT -
PROHIBITED CONDUCT

P.G. 200-02

MISSION, VISION AND
VALUES OF THE NYPD

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on April 19, 2024. Respondent, through his counsel, entered a plea of Not Guilty to the charged misconduct. The CCRB presented a hearsay case, and introduced Respondent's body-worn camera footage into evidence. Respondent testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all of the evidence in this matter, I find Respondent Not Guilty of all specifications.

ANALYSIS

This case arises from a car stop Respondent conducted of § 87(2)(b) vehicle in the early morning hours of March 9, 2020. CCRB alleges that Respondent wrongfully pointed his firearm at § 87(2)(b) wrongfully threatened him with the use of force, and used discourteous language against him. Respondent does not deny the facts underlying the allegations, but argues that his actions during the incident were justified by the circumstances surrounding the stop.

§ 87(2)(b) (Complainant), did not appear before the Tribunal. He was interviewed remotely by CCRB investigators on May 15, 2020, just over two months after the incident. The audio recording and transcript were entered into evidence as CCRB Exhibits 1 and 1A. Complainant recounted that he was driving to work in his Infinity G25X around midnight and that he was running late. He explained that while the intersection of Utica Avenue between Avenue D and Farragut is generally busy, there were few cars on the road when he saw “cops pull to the side” of his vehicle. Complainant contended that only after he pulled over did the blue and white police vehicle activate its lights and sirens. (CCRB Ex. 1A -1 at 4, 7-10) He stated that prior to being stopped, he had been driving the speed limit, which was 25 miles per hours. (CCRB Ex. 1A-2 at 3)

According to Complainant, the officer, later determined to be Respondent, “just comes...he didn’t ask for my license or nothing. He just pulls his gun out and put it to my face and asked me ‘what’s wrong with [you], what’s wrong with you.’” (CCRB Ex. 1A-1 at 4-5) He estimated that Respondent was standing ten inches outside his car because he could see the barrel of the Glock 40 firearm “in my face” and asserted that the gun was “probably” extended into the vehicle. (CCRB Ex. 1A-2 at 13-15) Complainant demanded to know why Respondent had his gun out and asked, “[a]re you going to shoot me for speeding?” He recalled that Respondent then

asked “to go in my pocket. I told him no.” (CCRB Ex. 1A-1 at 5) Complainant suggested that Respondent “was trying to see he could find something real quick because he knew it was probably wrong to pull his gun out on an innocent bystander.” (CCRB Ex. 1A-2 at 8) Complainant further detailed that his hands were up as Respondent, with his gun still drawn, asked for license, “and I told him my license was up there [on the dashboard] and I made him reach to grab my license and then...he was so close, his hand was on the trigger and his partner told him to chill out...put the gun away.” When asked by the investigator what else happened, § 87(2)(b) stated, “I can’t really remember, but I remember him pulling his gun out and threatening to shoot me for speeding.” (CCRB Ex. 1A-1 at 5) He characterized the interaction as him “begging” for his life until Respondent’s partner cautioned, “Hey, he’s good. He’s good, don’t do that.” (*Id.* at 17) § 87(2)(b) told the investigators that Respondent “took a few minutes,” but did put the gun away after his partner’s comment. (CCRB Ex. 1A-2 at 17)

Later in the interview, after a break due to connectivity issues, when specifically asked what the first thing Respondent said to him was, § 87(2)(b) responded, “I remember him saying ‘do you want me to shoot you? Why are you speeding?’ And just making derogatory terms and abusing his power.” In contrast to his earlier statement that he asked Respondent if he was going to shoot him for speeding, § 87(2)(b) offered that he could not respond because he was “scared for my life, I couldn’t respond with that gun to my face. I couldn’t respond.” § 87(2)(b) offered that he put his hands up, though he was not told to do so, “out of the courtesy that this guy might shoot me.” He estimated that Respondent had the gun pointed at him for three to five minutes. (CCRB Ex. 1A-2 at 5)

The interaction ended, he recalled with Respondent going back to the police vehicle and writing him three tickets “for no reason.” One summons was for speeding and § 87(2)(b) could

not remember the reason for the other two tickets, although he asserted that the tints on his car windows are within the legal limit. (CCRB Ex. 1A-1 at 5-7) He also stated there was nothing wrong with the condition of his vehicle such as a broken headlight or taillight. (CCRB 1A-2 at 4) The encounter ended with the officers leaving the scene and § 87(2)(b) continuing to work approximately 30 minutes after being stopped. (*Id.* at 11-12)

CCRB also entered Respondent's body-worn camera footage, which captures the interaction with Complainant, into evidence. The relevant portion of the video is as follows:

CCRB Ex. 2

- 00:00-00:30: [Buffer period, no audio] Respondent is operating the vehicle, view is mostly obscured by his arm. Respondent exits RMP quickly and activates camera.
- 00:30 – 01:00: Respondent approaches Complainant's car and draws his firearm and points it at Complainant while saying, "Turn off the car . . . turn the car off . . . gun's out." Simultaneously, Respondent's partner, Officer Bell, can be heard ordering, "Give me the keys." Officer Bell then says, "Put it away," to which Respondent replies, "No." Complainant also responds simultaneously, "It's off, it's off." Respondent then asks, "Where's the keys?" Complainant answers, "it's in my pocket . . . I can't, I can't . . . I'm a postal worker." Respondent replies, "I don't give a shit." Complainant then offers, "I'm on my way to work, I'm late," Respondent replies, "Don't fucking move." Respondent then asks, "Where's your license?" Complainant responds, "It's right here, look." Respondent then warns, "You fucking move, you're going to get hurt, you understand?" Respondent then holsters his firearm.
- 01:08 – 01:35 Respondent asks, "Where's the key fob?" Complainant responds, "It's in my pocket." Complainant hands Respondent the keys. Respondent asks, "What the hell you taking off for?" Complainant answers, "I was driving, I'm late to work." Respondent asks, "What do you mean driving? . . . bro who you playing with?" Complainant responds simultaneously, ". . . I was doing 40 . . . I was doing 40 . . . how much was I doing?" Respondent asks, "40, huh? . . . Is there any guns in the car?"
- 01:40 – 02:09 Complainant asks, "First of all, am I being detained?" Respondent retorts, "Yeah, right now you are detained, I'm thinking about taking you to jail right now." Complainant responds, "For what?" Respondent replies,

“Evading the police.” Complainant continues, “I didn’t even see you . . . you didn’t even siren, I just see lights.” Complainant then questions, “You pulled out a gun for me for speeding?” Respondent replies, “Of course.”

02:20 – 02:41 Complainant reiterates, “You pull a gun out on me for speeding;” Respondent answers, “For not stopping.” Complainant then says, “you didn’t put nothing . . . just lights . . . I didn’t even see you.” Complainant repeats, “You pulled a gun out on me for speeding.” Respondent again tells him, “For not stopping.”

Respondent appeared before the Tribunal and testified that on the date in question he was a highway safety officer in the 67 precinct. He recalled that he and his partner were conducting speeding enforcement stops at the intersection of Utica Avenue and Farragut. Respondent observed Complainant’s vehicle traveling at a high rate of speed and utilized a light detection and ranging (LIDAR) device to determine the speed of Complainant’s vehicle. He recalled that Complainant’s vehicle was estimated to be traveling at 40 miles per hour, 15 miles per hour over the posted 25 miles per hour limit. (Tr. 30-32) Respondent was driving a marked police vehicle equipped with emergency lights that are on the front windshield, in the grill, and on the side and back of the vehicle. Respondent testified that when he was approximately three car lengths away from Complainant’s car, he activated the lights and siren in order to initiate a car stop.

However, at that moment, Complainant’s vehicle suddenly accelerated. Respondent recounted that, “the water from the exhaust pipes came on the windshield.” Respondent explained further, “when a vehicle presses on the gas and goes faster, you’ll have water or moisture out of the exhaust pipes.” (Tr. 32-33) He estimated that Complainant’s vehicle reached an approximate speed between 65 to 70 miles per hour. He continued, “And now I’m trying to pull this individual over, lights and sirens blaring, and he’s not pulling over. And now we’re going, approximately, two and a half blocks north away, and that’s when I have to drive on the opposite side of the road and position to try to cut him off and angle my car in front of him to

pull him over.” Respondent recalled thinking, “Why is he not stopping? What’s going on? Is the car stolen? Is he wanted?” Respondent could not tell how many people were in the car because it was dark out and the “rear back window was tinted.” (Tr. 34-35)

Respondent testified that after Complainant’s Infiniti was stopped, Respondent “hopped” out of his RMP and ran towards Complainant’s car. He noted that because of the tinted windows he could not see who was inside of the vehicle or what was happening within, prompting him to draw his firearm. (Tr. 36-37) Respondent testified that he loudly yelled, “Gun’s out” to alert his partner and whoever was in the vehicle so that, “. . . hopefully they can hear my commands” before positioning himself by the “middle pillar” between the front and rear driver’s side. (Tr. 37-38) Respondent stated that he opened the driver’s door, and was then able to see Complainant. (Tr. 39) Respondent acknowledged that he instructed Complainant, “Don’t fucking move or else you’ll get hurt,” as his partner demanded to know the location of the car keys. He also conceded that he retorted, “I don’t give a shit” when Complainant told him he is a postal worker. (Tr. 41) Respondent explained that once he had “control” of the situation, after approximately twenty seconds, he holstered his gun. (Tr. 42, 53) Respondent asserted that he pulled his gun on Complainant because Complainant had evaded him and Respondent wasn’t sure why Complainant would do that. (Tr. 43, 46)

Respondent recalled that he wrote Complainant three summonses-- one for speeding, another for failure to comply with law enforcement, and the third for imprudent speed. (Tr. 45) On cross-examination, Respondent reiterated that he stopped Complainant’s vehicle because it was speeding. Respondent also reiterated that he drew his firearm because Complainant was evading the police. (Tr. 50, 54)

Specification 1: Wrongfully Pointing Firearm

Respondent stands charged with pointing his gun at Complainant, without police necessity, in violation of Patrol Guide section 221-01. Respondent does not dispute pointing his firearm at Complainant and thus the issue before the Tribunal is whether Respondent's conduct was justified by the circumstances surrounding this use of force. For the reasons set forth below, I find that it was.

Note 2 of Patrol Guide section 221-01 provides officers with the following guidance with regard to the brandishing of their gun: "Drawing a firearm prematurely or unnecessarily limits a uniformed member of the service's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present. Members of the service, when feasible, should issue an appropriate verbal warning, consistent with personal safety, to the intended subject and other members of the service present prior to discharging a firearm. When a uniformed member of the service determines that the potential for serious physical injury is no longer present, the uniformed member of the service will holster the firearm as soon as practicable." This note provides the framework for analyzing Respondent's actions.

At the outset, it is important to note that car stops are inherently dangerous and pose a significant risk to officer safety. This concern is heightened when the stop occurs in the dark. The potential for danger increases when the vehicle has tinted windows, making it difficult for the officer to see inside the vehicle. "In determining whether the use of force was reasonable, the trier of fact must allow for police officers' frequent need to make 'split-second' judgments about how much force is necessary 'in circumstances that are tense, uncertain, and rapidly evolving.'"

Pacheco v. City of New York, 104 A.D.3d 548 (1st Dept. 2013), quoting *Graham v. Connor*, 490 U.S. 386, 396 (1989).

During his interview with CCRB, Complainant professed that he was driving the speed limit, twenty-five miles per hour, when Respondent pulled him over for simply “driving.” (CCRB 1A-2 at 3) Indeed during the course of their interaction, Complainant repeatedly accused Respondent of “pulling a gun on [him]” for speeding. (CCRB Ex. 2 at 01:40-:02:41) I find each of these statements to be self-serving, and indeed, contradicted by body-worn camera footage. In that recording, Complainant admitted to Respondent that he was late for work and, “was doing forty.” (CCRB Ex. 2 at 01:30-01:35) Unfortunately, no video footage was submitted to the Tribunal which showed Respondent’s pursuit of Complainant’s car, which is the most critical evidence with regard to determining whether Respondent’s use of force was authorized.

Current NYPD body-camera policy requires officers to begin recording, “prior to commencing any self-initiated police action.” (P.G. 212-123, paragraph 6) However, the policy in effect at the time of this incident was more permissive, allowing officer to “begin recording prior to ~~or~~ immediately upon arrival at incident location.” (Patrol Guide 212-123, paragraph 6, dated Oct. 7, 2019, *emphasis added*) This leaves the Tribunal in the challenging position of piecing together the events based upon testimony and other available evidence.

I credit Respondent’s testimony that Complainant, who was already speeding, suddenly accelerated his vehicle upon seeing the turret lights from Respondent’s RMP. On the stand, Respondent described seeing Complainant’s car speed up, which caused condensation from the exhaust pipes to spray the windshield of Respondent’s patrol car. This testimony was corroborated by body-worn camera footage of Respondent speaking to his partner, after having returned to their vehicle to write summonses. In that portion of the video Respondent’s partner

states, “he was absolutely taking off.” (CCRB Ex. 2 at 03:25-31) A few moments later, Respondent can be heard excitedly saying, “Did you see the shit that came out when he hit the gas;” his partner replies, “yeah” and Respondent continues, “oh shit, turbo power.” (CCRB Ex. 2 at 04:00-06) Additionally during this exchange, Respondent and his partner discuss the speed required to catch up to Complainant, “I punched it to 70 miles per hour.” (CCRB Ex. 2 at 05:09-13) These exclamations made shortly after the incident happened, while speaking to his peer, with no time for collaboration or fabrication, have the ring of truth.

In addition, Respondent contended that Complainant failed to pull over his vehicle when Respondent initially activated the lights and sirens. Complainant appeared to acknowledge this failure when he challenged Respondent, “I didn’t even see you . . . you didn’t even siren, I just see lights.” (CCRB Ex. 2 at 01:48-01:55, Tr. 32-34) This failure to pull over, combined with the acceleration of his vehicle, led Respondent to take the extreme measures of pulling beside and then angling his car in front of Complainant’s in order to effectuate the stop.¹ The position of Respondent’s RMP shown in the body-worn camera video footage in front of and at an angle to Complainant’s confirms Respondent’s recitation of events. (CCRB Ex. 2 at 03:12)

After exiting his vehicle and approaching Complainant’s car, Respondent observed the tinted windows of Complainant’s car which prevented him from determining who was in the vehicle and what they were doing. At this time of night these visibility issues were compounded by the darkness. Contrary to Complainant’s statement that Respondent was pointing his gun at Complainant’s face for several minutes, the body-worn camera footage revealed that Respondent holstered his weapon after a little more than twenty seconds. (CCRB Ex. 1A-2 at 13-17, CCRB

¹ Although not strictly prohibited on the date of the incident, in 2022, Patrol Guide 221-15 (Vehicle Pursuits) was updated and now sets forth: “The following tactics are generally prohibited and should not be used in an attempt to stop a vehicle...b. placing moving Department vehicle in a position to be struck by the pursued vehicle c. Driving alongside the pursued vehicle...”

Ex. 2 at 00:57-60) Respondent testified that as soon as he “had control of the situation and the hands are up...my gun holsters right away.” (Tr. 42)

Each of these factors— acceleration, evasion, visibility issues— on their own may not have been enough to justify Respondent pointing his firearm at Complainant. However, when taken together, they presented a tense, risky, unpredictable and dangerous situation. This provided a basis for Respondent’s belief that there was a potential for serious physical injury. In particular, the acceleration and apparent refusal to pull over are the key pieces of evidence which support Respondent’s statements that he suspected Complainant was engaged in some type of conduct more serious and dangerous than simply speeding. Therefore, it was reasonable to believe that Complainant was attempting to evade the officers in order to avoid serious consequences, prompting Respondent to draw and point his gun. For the foregoing reasons, I find Respondent Not Guilty of Specification 1.

Specifications 2 and 3: Wrongfully Threatening the Use of Force and Discourteous Language

Respondent is charged with wrongfully threatening the use of force against Complainant by stating in sum and substance, “You fucking move, you’re gonna get hurt, you understand?” in violation of Patrol Guide section 203-10, and with using discourteous language when he told Complainant in sum and substance, “I don’t give a shit” and “Don’t fucking move,” in violation of Patrol Guide section 203-09. It is undisputed that, as charged, Respondent did make those statements to Complainant. Respondent has admitted to making them and the body-worn camera recordings captured the comments.

Having found Respondent not guilty of wrongfully using force without police necessity as charged in Specification 1, the question for the Tribunal with regard to Specification 2 is

whether the comment in question constitutes a wrongful threat of force against Complainant, in violation of Department guidelines. Respondent has admitted he made the statement and I credit his testimony that far from being a threat, he intended for the words to serve as a warning to Complainant that, for his safety, he should remain still until Respondent had assessed the situation. Respondent explained, "Again, if he moves on that right-hand side, I don't know what he's reaching for, what he is doing, it could be a knife, it could be a gun, it could be a liquid, it could be anything. It could be a million things." (Tr. 41) I found Respondent's reasoning, that he was trying to ensure the safety of himself, his partner, and indeed Complainant to be sincere. Indeed, soon after Respondent made the comment, he holstered his weapon and issued Complainant his summonses without further incident. Based on the foregoing, I find that CCRB has failed to prove by a preponderance of the credible evidence that Respondent's statements constituted a wrongful threat of force against Complainant. I therefore find Respondent Not Guilty of Specification 2.

With regard to Specification 3, which alleges the use of discourteous language, telling a member of the public, "I don't give a shit" and "Don't fucking move," is rude and discourteous on its face. In general, this is certainly not the kind of language that the Department tolerates from officers in the course of regular conversations with members of the public. This Tribunal has found that under certain circumstances the use of harsh language does not rise to the level of sanctionable misconduct but has cautioned, "the extension of an exception to a rule should be circumscribed. Otherwise, the exception will swallow the rule." *Disciplinary Case No. 2015-14171* (March 27, 2017) With this in mind, the Tribunal will analyze each statement made by Respondent separately.

The first statement made by Respondent – “I don’t give a shit,” was made shortly after Respondent pursued Complainant at high speed and engaged in a dangerous maneuver to stop his car. He then approached with his gun drawn and made this statement in the immediate aftermath, before he felt the situation was under control and holstered his weapon. Indeed, Respondent and his partner were giving commands to Complainant simultaneously. The exchange begins with Respondent asking, “Where’s the keys?” Complainant answered “it’s in my pocket . . . I can’t, I can’t . . . I’m a postal worker, look.” Respondent replied, “I don’t give a shit.” (CCRB Ex. 2 at 00:36-00:44) On the stand, Respondent detailed why he chose those words, “Because at that time, I didn’t care what profession it is, it wasn’t going to change the situation. You could be anybody, it’s still, you know -- we don’t know what’s going on, and we need to have control of the situation. Once we have control, then we could go further and we’ll see what we have.” (Tr. 48) I credit Respondent’s explanation. Although it would have been preferable if Respondent told Complainant that his occupation or place of employment was not germane to the car stop instead of abrasively responding, “I don’t give a shit,” Respondent was, at the time he made the statement, trying to make a quick safety assessment and gain control of the vehicle, while ensuring that Complainant was not armed. I believe that, far from trying to belittle or demean Complainant, Respondent was simply, albeit inartfully, stating that Complainant’s employment was not relevant at that moment. In light of the stressful circumstances surrounding it, the Tribunal finds this statement does not rise to the level of misconduct.

The second charged statement– “Don’t fucking move,” while separate from the statement discussed in Specification 2, is substantially similar and made in the same sequence of events. As with the previous statement, this constituted a warning to Complainant to stay still until Respondent had assessed the situation. Complainant complied with the warning and shortly

thereafter Respondent was able to holster his firearm, without further incident. To be sure, Respondent could have conveyed his warning in a more professional, even-handed manner, without resorting to vulgarity. However, the statement must be analyzed in the context of the circumstances in which it was made. Respondent was faced with an individual, who after committing a traffic infraction, sped up to dangerous speeds when confronted by police, had to be forced off the road, and who could not initially be seen by officers because of the tint of the windows. While attempting to gain control over the situation and simultaneously assessing the potential for danger, Respondent used profanity.

The circumstances here are similar to those in *Disciplinary Case No. 2022-27455* (Oct. 10, 2023), in which a police officer was found not guilty of speaking discourteously in response to a motorist rolling up the windows of his car as the officer was attempting to issue a summons. The respondent in that case reacted by stating, "Don't do that shit in my face." The Tribunal found that while the language was unbecoming, and should not be part of a police officer's normal vernacular, the objective of the words was to communicate a directive and that the circumstances presented at that moment absolved Respondent from discipline for using it. The same reasoning applies in the instant matter. I find that this statement, like the first, does not constitute misconduct.

Accordingly, the Tribunal finds Respondent Not Guilty of Specifications 2 and 3.

Respectfully submitted,



Anne E. Stone
Assistant Deputy Commissioner Trials

APPROVED

JUN 24 2024

EDWARD A. CABAN
POLICE COMMISSIONER



ERIC L. ADAMS
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ARVA RICE
INTERIM CHAIR

Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

May 28, 2024

Re: Police Officer Caner Sezer

Disciplinary Case No. 2022-25079

Commissioner Caban:

The above-referenced case was tried on April 19, 2024, by the undersigned, for the New York City Civilian Complaint Review Board (hereinafter “CCRB”), and pursuant to the Memorandum of Understanding between CCRB and the New York City Police Department.

Respondent, Police Officer Caner Sezer, was charged with the following:

1. Police Officer Caner SEZER, on or about March 9, 2020, at approximately 0030, while assigned to 067 PCT and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, wrongfully used force, in that he pointed his gun at § 87(2)(b) without police necessity.

PG 221-02, page 2, Prohibition 11. 12 USE OF FORCE

2. Police Officer Caner SEZER, on or about March 9, 2020, at approximately 0030, while assigned to 067 PCT and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by stating, in sum and substance, “You fucking move, you’re gonna get hurt, you understand?” without police necessity.

PG 203-10, page 1, paragraph 5 PUBLIC CONTACT- PROHIBITED CONDUCT [now encompassed by Administrative Guide 304-06, page 1. Paragraph 1 PROHIBITED CONDUCT]

3. Police Officer Caner SEZER. on or about March 9, 2020, at approximately 0030, while assigned to 067 PCT and on duty, in the vicinity of Utica Avenue and Beverley Road, Brooklyn, NY 11203, Kings County, was discourteous to § 87(2)(b) in that he stated, in sum and substance, “I don't give a shit.” “Don't fucking move,” without sufficient legal authority.

PG 203-09, page 1, paragraph 2 PUBLIC CONTACT- GENERAL [now encompassed by Administrative Guide 304-06, page 1, Paragraph 2 PROHIBITED CONDUCT]; PG 200-02 MISSION, VISION, AND VALUES OF THE NEW YORK CITY POLICE DEPARTMENT

CCRB has reviewed the May 16, 2024, draft decision of Assistant Deputy Commissioner - Trials Anne E. Stone (hereinafter, “ADCT”). We respectfully submit the following comments regarding the draft decision pursuant to Fogel v. Board of Education, 48 A.D.2d 925 (2d Dep’t 1975).

The Court found Respondent Sezer not guilty of Specifications One (1), Two (2), and Three (3). It is respectfully requested that you reject ADCT Stone’s findings, find the Respondent guilty of the enumerated Specifications, and accept CCRB’s recommended penalty of the forfeiture of Ten (10) vacation days.

SUMMARY OF THE RELEVANT EVIDENCE AT TRIAL

Exhibits

CCRB’s Exhibits

1. § 87(2)(b) CCRB Interview
- 1a. § 87(2)(b) CCRB Certified Interview Transcript
2. PO Caner Sezer’s Body-Worn Camera Footage
3. PO Caner Sezer’s Activity Log Report Entry for March 9, 2020

Respondent’s Exhibits

N/A

Testimony

Officer Caner Sezer

Officer Sezer testified that on March 9, 2020, he and a partner officer were conducting a traffic safety assignment in the vicinity of vicinity of Utica Avenue and Farragut Road, Brooklyn (Transcript, 29-30). At around 12:30AM, Officer Sezer, equipped with a LIDAR device, observed a white Infiniti sedan traveling northbound on Utica Avenue, at a rate of speed of about forty to forty-five miles per hour (Transcript, 31-32). Officer Sezer further testified that the vehicle's speed was above the posted speed limit of twenty-five miles per hour. Id. Officer Sezer then attempted to pull over the sedan, first by activating his RMP's lights and sirens (Transcript, 33). According to Officer Sezer, the vehicle then increased its rate of speed to sixty to seventy-five miles per hour; Officer Sezer responded by pulling his vehicle alongside that of the complainant, § 87(2)(b) and then angling his RMP rightward to prevent the Infiniti sedan from traveling further (Transcript 34-36).

Officer Sezer testified that after the Infiniti sedan came to a stop, he and his partner officer exited their RMP and approached the stopped vehicle (Transcript 36-38). Officer Sezer explained that as he approached, he had his service weapon drawn in his right hand and assumed a position as the "middle pillar" portion of the Infiniti sedan, in other words, the space between the driver's seat and rear passenger seating. Id. He also testified on direct examination that his gun was about four feet away from § 87(2)(b) before he ultimately holstered it (Transcript, 47). Officer Sezer described the interaction as a "high-intense situation" and clarified that while on body-camera he verbally agreed with § 87(2)(b) that he pulled his gun in response to speeding, he also pulled his gun on § 87(2)(b) for "evading me" (Transcript 42-43).

In his testimony, Officer Sezer fully conceded he told § 87(2)(b) "Don't fucking move or else you'll get hurt," and later, "I don't give a shit" when § 87(2)(b) told him he is a postal worker. (Transcript, 41). Officer Sezer's proffered explanation for his initial commentary was "[i]t's just I was just taking control of the situation and making sure that, you know, we're here for this and this is business," while also insisting, "We're not here to -- I'm not here to hurt you. I'm not here for any of that. I'm here to control the situation to make sure I go home safe, my partner goes home safe. And believe it or not, and to make sure he goes home safe and not get hurt." Id. As to the latter exclamation, Officer Sezer testified, among other things, that "Because at that time, I didn't care what profession it is, it wasn't going to change the situation" (Transcript, 48).

Under cross-examination, Officer Sezer confirmed that he believed § 87(2)(b) might possess a firearm but admitted that he never observed a gun or gun-shaped bulge, never recovered a weapon from the complainant's vehicle, and never received a radio-run or anonymous tip about a dangerous crime in progress concerning the complainant's vehicle, (Transcript, 59-60). Officer Sezer also admitted that he was not trained to draw his weapon every time a motorist doesn't immediately stop their vehicle (Transcript, 61).

RESPONDENT IS GUILTY OF SPECIFICATION ONE

We disagree with the Tribunal's finding that, given the combination of "[complainant's] acceleration, evasion, [and] visibility issues" there was an adequate basis for Respondent's belief that there was a potential for serious physical injury, thereby justifying drawing his firearm (Decision, 11).

First, CCRB Exhibit 2 provides clear and convincing evidence that from the outset, Officer Sezer had full control of the situation: When Officer Sezer approaches, gun drawn, § 87(2)(b) almost immediately raises both hands in the air (CCRB Ex. 2 at 00:30-1:00). Furthermore, he complies with all of Officer Sezer's commands. *Id.*

Patrol Guide § 221-01 provides in relevant part that "[d]rawing a firearm prematurely or unnecessarily limits a uniformed member of the service's options in controlling a situation and may result in an unwarranted or accidental discharge of the firearm. The decision to display or draw a firearm should be based on an articulable belief that the potential for serious physical injury is present." Here, Officer Sezer confirmed that he at least in part drew his weapon because of § 87(2)(b) speeding and "evasion" but denied either observing indicia of, or receiving prior reports related to, § 87(2)(b) potential dangerousness and/or criminality. These factors, including those cited by the Tribunal (to wit, acceleration, evasion, visibility issues), whether analyzed discretely or in their totality fail to justify a law enforcement measure as extreme as drawing and pointing a firearm at a stopped motorist. While all of the above could sustain a contention that Officer Sezer's suspicion was heightened as to § 87(2)(b) engaging in criminal activity, they hardly rise to the level upheld by courts as justifying a drawn gun.

Indeed, courts also provide ample guidance as to precisely the appropriate situations for officers to approach a stopped vehicle with their guns drawn. In People v. Watkins, the court emphasizes that the touchstone of such an analysis, here, the drawing of guns and issuing commands to a stopped motorist, must be individualized to a particular suspect. See People v. Watkins, 50 A.D.2d 739 (1st Dep't. 1975). As such, that same court found that an anonymous tip concerning the potential for narcotics or a weapon in an area could not sustain the aforementioned law enforcement actions. *Id.* Similarly, in People v. Hampton, the Appellate Division held that a taxi-cab driver's late night, erratic driving in an isolated area could not support the officers' detainment of the motorist with guns drawn. 200 A.D.2d 466 (1st Dep't. 1994). At trial, Officer Sezer testified to few specific, articulable facts about the circumstances at hand, beyond a motorist not immediately stopping in a vehicle pursuit, that could paint a sufficient portrait of dangerousness.

Finally, the Tribunal does not address the actions of Officer Sezer's partner officer, who, in the identical set of circumstances, does not feel the need to draw his weapon, and even counsels Respondent to do the same. As the Tribunal observed in its analysis of Officer Sezer's body-worn camera, Officer Bell "can be heard ordering, 'Give me the keys.' Officer Bell then says, 'Put it away,' to which [Officer Sezer] replies, 'No.'" (Decision, 5; CCRB Ex. 2 at 00:30-1:00). Officer Bell's actions constitute powerful confirmatory evidence that Officer Sezer's actions were not only improper but deviated wildly from those of a reasonable officer in the same circumstances.

In sum, Officer Sezer's drawing and pointing his firearm in the context of the instant vehicle stop was unsupported by the circumstances, and constituted an egregious and dangerous escalation that violated the dictates of the Patrol Guide.

RESPONDENT IS GUILTY OF SPECIFICATIONS TWO and THREE

Finally, the CCRB also disputes the Tribunal's finding that, where Officer Sezer was "attempting to gain control over the situation and simultaneously assessing the potential for danger" his threat of force and profanity, contained in Specifications 2 and 3, were justified by the circumstances.

With respect to Specification 2, Officer Sezer's undisputed threat(s) of force laced with profanity, the Tribunal likens the instant case to Disciplinary Case No. 2022-27455 (Oct. 10, 2023). There, the Tribunal held an officer was justified for exclaiming, "Don't do that shit in my face", when a motorist rolled up his window in response to the officer issuing summonses. *Id.* However, because the statements were given in the context of "communicat[ing] a directive and [] the circumstances presented at that moment absolved Respondent from discipline for using it", they did not constitute misconduct (Decision, 14). However, the circumstances here are inapposite: First, Officer Sezer's threat is paired with the unmistakable presence of a loaded firearm, in hand, pointed at the motorist. As discussed previously, the circumstances could not justify Officer Sezer's untoward escalation. Additionally, at the moment of Officer Sezer's threats, § 87(2)(b) is compliant and, with hands raised, in a deferential position. As such, Officer Sezer's language, coupled with actions far exceeded merely conveying a command and entered into the realm of blatant misconduct.

With respect to Specification 3, The Tribunal also, rather charitably, characterizes Officer Sezer's dismissive commentary towards § 87(2)(b) as "simply, albeit inartfully, stating that Complainant's employment was not relevant at that moment" (Decision, 13). However, Officer Sezer's own explanation at trial makes a subtle distinction, that at the moment he did not care about § 87(2)(b) employment, and that, crucially, it would not change the situation for the motorist (Trial, 48). Officer Sezer's testimony reveals his awareness that § 87(2)(b) intended to share that he was a fellow public service worker in the context of the stop, and that Officer Sezer's intention was at a minimum rude and derogatory. In any event, such reasoning is an impermissible basis to direct profanity at civilians. Additionally, as noted with respect to Specification One, § 87(2)(b) compliance, hands raised, as well as Officer Bell's comparatively civil discourse, belie any assertion by Officer Sezer that he was in a stressful, chaotic or uncontrolled situation. His actions in CCRB Exhibit 2 amount to as much, where he approaches gun raised and immediately barking commands to a compliant civilian.

In sum, CCRB asks you to carefully review the evidence, which strongly supports a finding of guilt on the charged Specifications. Based on the presented arguments above, Officer Sezer is Guilty of Specifications One (1) through Three (3), and CCRB recommends the penalty of the forfeiture of Ten (10) vacation days.

Respectfully submitted,



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